

		[Citation.] Such an assertion of control occurs, for example, when the principal employer <i>directs</i> that the contracted work be done by use of a certain mode or otherwise interferes with the means and methods by which the work is to be accomplished. [Citation.] [Citation.]” (<i>Millard v. Biosources, Inc.</i> (2007) 156 Cal.App.4th 1338, 1348.) (Emphasis in original; internal quotations omitted.) The Court finds the allegations in the FAC are sufficient at the pleading stage to demonstrate Plaintiff’s claims fall within the <i>Hooker</i> exception to the <i>Privette</i> doctrine. The allegations are sufficient to demonstrate that Defendant retained a sufficient degree of authority over Four Star’s work and that Defendant exercised that control in a manner that affirmatively contributed to Plaintiff’s injury. (FAC, ¶¶ 11-12.) Accordingly, as alleged, Plaintiff’s claims in the FAC do not appear barred by the <i>Privette</i> doctrine and the demurrer is thus OVERRULED. Defendant is to file and serve an answer to the FAC within 10 days. <i>Counsel for Plaintiff is to give notice.</i>
10.	Greencorn v. Ayres Hotel Anaheim 22-1275741	The unopposed demurrer to the complaint of Plaintiff, Joshua Greencorn (“Plaintiff”) filed by Defendant, Ayres Hotel Company, Inc. (“Defendant”) is SUSTAINED with 20 days leave to amend. <u>First Cause of Action – Battery:</u> Defendant is correct that Plaintiff fails to plead facts to show Defendant touched Plaintiff, or caused Plaintiff to be touched, with the intent to harm or offend Plaintiff. (<i>So v. Shin</i> (2013) 212 Cal.App.4th 652, 669 [elements of battery].) It is unclear from the Complaint how Defendant made harmful or offensive contact with Plaintiff’s person. The demurrer to the first cause of action is thus SUSTAINED with 20 days leave to amend. <u>Third Cause of Action – IIED:</u> Plaintiff fails to plead extreme and outrageous conduct directed at Plaintiff. (<i>Christensen v. Superior Court</i> (1991) 54 Cal.3d 868, 903; <i>Chang v. Lederman</i> (2009) 172 Cal.App.4th 67, 86.) The allegations that Defendant failed to properly clean and maintain the hotel room and failed to notify Plaintiff of the presence of bed bugs do not show that Defendant acted intentionally to harm Plaintiff or engaged in conduct especially calculated to cause harm to Plaintiff, nor do

Defendant's acts amount to conduct that is so outrageous that it would exceed all bounds usually tolerated in a civilized community. Plaintiff also fails to adequately plead severe or extreme emotional distress. The demurrer is therefore **SUSTAINED** with 20 days leave to amend.

Fourth Cause of Action – Fraudulent Concealment:

"[T]he requirement that fraud must be pleaded with specificity applies equally to a cause of action for fraud and deceit based on concealment." (*Cansino v. Bank of Am.* (2014) 224 Cal.App.4th 1462, 1472.) "The requirement of specificity in a fraud action against a corporation requires the plaintiff to allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written." (*Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 157.)

Defendant is correct that the Complaint fails to plead the fraud claim with the requisite specificity. There are no facts showing who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written. Thus, the demurrer is **SUSTAINED** with 20 days leave to amend.

Fifth Cause of Action – Private Nuisance:

"[A] plaintiff bringing a cause of action for private nuisance must show harm to a property interest." (*Orange County Water Dist. v. Sabic Innovative Plastics US, LLC* (2017) 14 Cal.App.5th 343, 402.) Here, Plaintiff alleges the bed bug infestation "interfered substantially with Plaintiff's use and comfortable enjoyment of Plaintiff's Subject Hotel room." (Complaint ¶ 83.) Defendant's argument that Plaintiff's private nuisance claim fails because Plaintiff does not hold a property interest in Defendant's hotel has merit. The Complaint alleges Plaintiff stayed at Defendant's hotel for only two nights. (Complaint ¶¶ 14, 16.) Plaintiff fails to show how he can allege a property interest in Defendant's hotel under these circumstances. As such, the demurrer is **SUSTAINED** with 20 days leave to amend.

Sixth Cause of Action – Public Nuisance: A private plaintiff may bring a cause of action for public nuisance if the nuisance is "specially injurious" to the plaintiff. (*Civ. Code*, § 3493.) Defendant is correct that this claim fails because Plaintiff fails to adequately plead a special injury to Plaintiff different in kind from the general public.

		Accordingly, the demurrer is SUSTAINED with 20 days leave to amend. <u>Seventh Cause of Action – Breach of Contract:</u> The Complaint fails to plead facts demonstrating that Defendant breached any specific term of the written contract. (<i>Oasis West Realty, LLC v. Goldman</i> (2011) 51 Cal.4th 811 [elements of breach of contract].) The allegation that the contract “requires the room to be maintained in a sanitary, clean, and habitable condition,” does not specify any particular contract term that was breached. Accordingly, the demurrer is SUSTAINED with 20 days leave to amend. Furthermore, as to all causes of action, Plaintiff failed to oppose the demurrer and has therefore implicitly conceded the Demurrer’s merit. (See <i>Herzberg v. County of Plumas</i> (2005) 133 Cal.App.4th 1, 20; <i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410.) <i>Counsel for Defendant is to give notice.</i>
11.	Von Dehn v. The Lawyers Group, Inc. 20-1153544	The Motion for Summary Judgment filed by Defendants The Lawyers Group, Inc. and Lawrence Levy on 3/10/23 is GRANTED. As a preliminary matter there are a large number of objections on both sides. As to Plaintiff’s objections to the Carlson declaration and the Shapiro declaration, the objections are OVERRULED. As to Defendants’ objections to Plaintiff’s Declaration, the objections to ¶¶ 6-8, 13-15, and 19 are SUSTAINED. The rest are OVERRULED. As to the Jacobson Declaration, objections to ¶¶ 7b, 7f, and 9 are SUSTAINED. The remainder are overruled. This action concerns a single cause of action for professional negligence. "The elements of a cause of action for legal malpractice are (1) the existence of an attorney-client relationship or other basis for duty; (2) a negligent act or omission; (3) causation; and (4) damages." (<i>Kurini v. Hanna & Morton</i> (1997) 55 Cal.App.4th 853, 863.) "'Proof of legal malpractice requires proof not only of negligence by the lawyer but also of causation, a trial within a trial to establish that, but for the lawyer's negligence, the client would have prevailed in the underlying action.'" (<i>Id.</i> at p. 864, internal citations omitted.) Plaintiff must prove that but for the negligence of the attorney, a better result would have been obtained and she "must prove what that better outcome would have been." (<i>Marshak v. Ballesteros</i> (1999) 72 Cal.App.4 1h 1514, 1518.)